CONG YANGZHONG
and
THE STATE

HIGH COURT OF ZIMBABWE
TAKUVA and CHIKOWERO JJ
HARARE; 26 January 2026 and 18 May 2026

Criminal Appeal

M Makuvatsine, with C Madhlabe, for the appellant
T Mapfuwa, for the respondent

CHIKOWERO J:

[1] This is an appeal from the whole judgment of the Regional Court sitting at Harare convicting the appellant of two counts. Count 1 is a contravention of s 45 (1) (b) as read with s 128 (1) (b) of the Parks and Wildlife Act [*Chapter 20:14*] in that it was found that on 16 July 2025 and at house number 357 The Grange, Harare, the appellant possessed three rhinocerus horns weighing 7.70 kilograms without a permit. Count 2 is a contravention of s 82 (1) of the Parks and Wildlife General Regulations Statutory Instrument 362/1990 as read with s 128(1)(b) of the Parks and Wildlife Act [*Chapter 20:14*] in that on the same date and at the same place and time the appellant possessed 36.25 kilograms of raw unmarked ivory without a permit.

[2] Following a full trial at which the appellant was defended by two legal practitioners the lower court was satisfied that the police relied on a tip off by an informer to track the appellant to his residence whereat they recovered the rhino horns from his person and four pieces of the raw unmarked ivory from his dining room.

[3] The lower court found that Stuart Murahwa and Taurai Kemusi were credible witnesses. The two were police officers stationed at the Criminal Investigations Department Minerals Flora and Fauna Unit. They corroborated each other in detailing how the former had received information indicating that a male Chinese national was illegally dealing with wildlife products and was aboard a red Honda Fit vehicle whose registration number was disclosed at the trial. The apparel of that suspect was also described as well as information

that the suspect was travelling to Highlands in Harare. The record discloses that Murahwa and Kemusi gave detailed evidence of their surveillance of the suspect (who turned out to be the appellant) right up to his residence at number 357 The Grange, Harare. There, they identified themselves to the appellant after he had unlocked the main gate to the residence, searched his satchel wherefrom they recovered the rhinocerus horns. After the appellant had unlocked the main door to the residence the duo also recovered two elephant tusks which were on a scale as well as two other elephant tusks which were stashed in two brown sacks. These four elephant tusks and the scale were all recovered from the appellant's dining room.

[4] The appellant was a tenant at that residence. His defence was a denial of possession of the rhino horns and the ivory. He alleged connivance between the police and his landlord to foist the rhino horns and the ivory on him so that he would be prosecuted , convicted and incarcerated and, thereby, free the landlord from the obligation to pay an amount of US$ 10 000 entrusted to the landlord by the appellant. The defence was rejected.

[5] Further, the lower court accepted the expert evidence of Jeremiah Chakuya. The witness, who holds a Bachelor of Science degree in Geography and Environmental Science, a Masters degree in Ecological Resources and a Doctor of Philosophy degree in Ecology, was employed by the Zimbabwe Wildlife Management Authority (Zimparks) as a Chief Ecologist. At the time that he testified for the prosecution he had served Zimparks for 18 years. He described how he had examined the rhino horns and the ivory and tendered reasons for his conclusion that two of the horns were extracted from a square lipped rhinocerus and one from a black rhinocerus. He also explained why he concluded that the four pieces of raw unmarked ivory were extracted from elephant tusks.

[6] As regards the conviction on both Counts, the appellant attacks the correctness of the factual finding that he possessed the rhino horns and the ivory. That finding was premised on the assessment of Murahwa and Kemusi as credible witnesses. In this jurisdiction, it is accepted that a trial court is better placed to assess the demeanor and credibility of witnesses. See *State* v *Katsiru* 2007 (1) ZLR 364 (H). In *Chimbwanda* v *Chimbwanda* S 28/02 ZIYAMBI JA said at p4:

> "It is trite in our law that an appellate court will not interfere with findings of fact made by a trial court and which are based on the credibility of witnesses. The reason for this is that the trial court is in a better position to assess the witnesses from its vantage point of having seen and heard them. See *Hughes* v *Graniteside* (Pvt) Ltd S 13/84. The exception to this rule is where there has

been a misdirection or a mistake of fact or where the basis the court *a quo* reached its decision was wrong."

[7] The judgment appealed against is thorough. We have painstakingly ploughed through the evidence on record. We perceive of no basis to quarrel with the trial court's assessment of Murahwa and Kemusi as credible witnesses. The duo presented evidence pregnant with detail relating to their surveillance of the appellant and the recoveries effected pursuant thereto. Nothing turns on the fact that the appellant was not arrested at Chisipite Shopping Centre. The police are trained in investigating crime and are better placed to use their discretion in timing an arrest. Equally, nothing turns on the fact that the prosecution did not call anybody from either the red Honda Fit vehicle or the silver unregistered Honda Fit Vehicle to testify. Murahwa and Kemusi testified that the appellant arrived at the Shopping Centre aboard the former motor vehicle whereupon he disembarked and quickly boarded the latter which dropped him off at his residence. In tracking the appellant, the police used two motor vehicles. Neither the appellant on the one hand nor Murahwa and Kemusi on the other were known to each other prior to the day in question. This means that the two police officers who testified at the trial had no reason to give false evidence of receipt of information from an informer, false evidence of surveillance of the appellant as well as false evidence of recovery of the rhino horns and the ivory from the appellant's possession. It must not be forgotten that we are at this stage confined to the record. The trial court was not. It saw and heard the witnesses as they testified. It assessed their demeanor and credibility. It was impressed by Murahwa and Kemusi. Our reading of the record shows that those two witnesses gave clear and detailed evidence which was easy to follow. They were not discredited under cross examination.

[8] Before us, Mr Makuvatsine complained that the trial court did not explicitly state that the appellant's defence was manifestly false. That is a question of semantics. A reading of the judgment discloses the basis of the conviction. We have already said that Murahwa and Kemusi were found to be credible witnesses. That in itself means the lower court was rejecting the appellant's defence that the rhino horns were not recovered on his person and that he was not found in possession of the ivory. The witnesses testified, and were believed, that their search of the appellant's person yielded the rhino horns while his act of unlocking the door to his dining room placed the witnesses, and the appellant, face to face with the ivory. In any event, the court *a quo* assessed the appellant's defence and rendered plausible reasons for rejecting it. Besides the fact that the appellant kept shifting his

position during the trial, the lower court's reasoning in rejecting the assertion that the police connived with the appellant's landlord in the manner already indicated in this judgment is beyond reproach. The imposition of a custodial sentence does not stop anyone, the appellant included, from instituting a civil claim against their landlord.

[9] The court *a quo* was not in error in accepting the ecologist's evidence that what he examined were rhino horns and ivory. He was an expert. He gave a factual basis for his conclusions. The appellant did not call his own expert to rebut the expert evidence adduced by the prosecution.

[10] The sole ground of appeal against the sentence reads:

> "The court *a quo* erred at law in failing to either treat the two counts as one for the purposes of sentence or to make the sentence in count one to run concurrently with the sentence in count two, taking into account the circumstances under which the rhinocerus horns and unmarked raw ivory were recovered which amounts to the same act."

[11] Since the court *a quo* found that there were no special circumstances, it passed the minimum mandatory effective sentence of 9 years imprisonment on the appellant on each count. It was urged to, but declined, to treat the two counts as one for the purposes of sentence. In so far as the appellant urges us to interfere with the sentence on the basis of an alleged failure by the lower court to treat both counts as one for purposes of sentence, the appellant is in error in that regard. It is not competent to do so, as that would defeat the clear intention of the legislature for the imposition of an effective mandatory minimum penalty of nine years per count. See *State* v *Huni & 4Ors* 2009 (2) ZLR 432 (H).

[12] Mr Mapfuwa concedes that the appeal against sentence should be allowed to the extent that we should alter the sentence so that the sentence on count 2 runs concurrently with that on Count 1. He finds justification for this position on the basis that the offences are kindred in nature and were committed by the same offender at the same place and time. The lower court was not urged to consider such an option. Despite the fact that the appellant was represented throughout the trial by two legal practitioners it was never proposed to the lower court to consider concurrent running of the sentence on Count 2 with that passed on Count 1. So, it is not correct to argue on appeal and for the first time, that the lower court misdirected itself in the manner contended in the ground of appeal. We do not have the benefit of the lower court's decision on this issue because the issue was not placed before it for consideration. As it was not an issue before the lower court it

cannot be an issue before us. An appeal is based squarely on the record of proceedings. Thus, in speaking to a misdirection in not ordering concurrent running of the sentence on the second Count with that passed on the first Count, the ground of appeal is misplaced. The concession is likewise misplaced. Sentencing discretion reposed in the court *a quo*. The approach it took in sentencing the appellant is provided for by the legislature. There is also nothing irregular in either the procedure involved in approaching the issue of sentence or the sentence imposed on each count.

[13] The appeal is dismissed in its entirety

CHIKOWERO J:.....

TAKUVA J:……...

I AGREE

Hove Legal Practice, appellant's legal practitioners
The National Prosecuting Authority, respondent's legal practitioners